

24CHCV02702 24CHCV02702

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Case Number: 24CHCV02702 Hearing Date: August 7, 2026 Dept: F47

Dept. F47

Date: 8/7/26

TRIAL DATE: 11/2/26

Case #24CHCV02702

MOTION TO

COMPEL FURTHER RESPONSES

(Demands for

Production of Documents, Set 3)

Motion filed on 2/27/26.

MOVING PARTY: Plaintiff Serene Fakhouri

RESPONDING PARTY: Defendant Magic Mountain, LLC

NOTICE: ok

RELIEF REQUESTED: An order

compelling Defendant Magic Mountain, LLC, to, within 10 days, serve further

verified responses and production of documents in response to Plaintiff's

demands for production of documents, Set 3, Nos. 148, 149, 150 and 151. Additionally, Plaintiff requests an order

imposing sanctions against Defendant and its counsel, Sanaz Cherazie and Amaro

Baldwin, LLP, jointly and severally, in the amount of \$2,600.00.

RULING: The request to compel further responses is moot. Plaintiff's request for sanctions is granted. Defendant's request for sanctions is denied.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of injuries allegedly sustained by Plaintiffs Serene Fakhouri (Serene); Cassandra Fakhouri (Cassandra's claims were dismissed with prejudice on 11/19/25) and Reyan Fakhouri (Reyan) (collectively, Plaintiffs) as a result of riding the Riddler's Revenge roller coaster at Defendants Magic Mountain, LLC and Six Flags Entertainment Corporation's theme park. Reyan is the mother of Serene and Cassandra.

On 7/24/23, Plaintiffs visited Defendants' amusement park and rode the Riddler's Revenge roller coaster. Plaintiffs allege that while on the ride, their heads and bodies were jerked around like rag dolls to the point where they all sustained traumatic brain injuries. Additionally, Plaintiffs allege that when they got off the ride, they exhibited post-concussion symptoms. Serene also exhibited left facial droop and slurred speech.

Plaintiffs have sued Defendant Magic Mountain LLC (Defendant) and others for: (1) General Negligence, (2) Premises Liability, (3) Negligent Infliction of Emotional Distress, (4) Strict Products Liability – Manufacturing Defect, (5) Strict Products Liability – Design Defect, and (6) Strict Products Liability – Failure to Warn.

On 8/15/25, Serene/Plaintiff served Defendant with Demands for Production of Documents, Set 3. (Khorsandi Decl., Ex.1). After extensions to respond, on 10/14/25, Defendant served responses, which included only objections in response to Demands 148, 149, 150 and 151. (Id., Ex.2-3). Defendant provided a verification on 10/16/25. (Id., Ex.4). On 11/5/25, the parties began to meet and confer regarding responses which Plaintiff found deficient. (Id., Ex.5). Defendant requested multiple extensions to respond to Plaintiff's meet and confer letter. (Id., Ex.6). On 1/28/26, Defendant sent a letter claiming not to know what Plaintiff was requesting in

Demands 148 and 149. (Id., Ex.6). Defendant also asserted that based on the privilege objections asserted, it would not provide any documents in response to Demands 150 and 151. Id. On 2/20/26, the parties counsel met and conferred telephonically without any resolution. Id.

On 2/27/26, Plaintiff filed and served the instant motion seeking an order compelling Defendant to, within 10 days, serve further verified responses and production of documents in response to Plaintiff's demands for production of documents, Set 3, Nos. 148, 149, 150 and 151. Additionally, Plaintiff requests an order imposing sanctions against Defendant and its counsel, Sanaz Cherazie and Amaro Baldwin, LLP, jointly and severally, in the amount of \$2,600.00.

On 2/27/26, Defendant served supplemental responses. (Cherazaie Decl., Ex.F). On 4/14/26, Plaintiff sent a meet and confer letter regarding Defendant's supplemental responses. (Id., Ex.G). On 4/17/26, Defendant served a third supplemental response to the subject document demands. (Id., Ex.H).

On 7/14/26, Defendant filed and served an opposition to the motion. On 7/20/26, Plaintiff filed and served a reply to the opposition.

ANALYSIS

The reply states that "[o]nly after Plaintiff filed the instant Motion did Defendant finally serve substantive supplemental responses." (See Reply, p.3:1-2; Gonzalez Decl. ¶6). As such, the issue of compelling further responses to the subject document demands is moot. The imposition of sanctions is the only remaining issue. (See Reply, generally).

Contrary to the assertion in the opposition, the Court finds that Plaintiff is also entitled to an award of sanctions against Defendant and its counsel. The parties agreed to 2/27/26 as the extended deadline for a motion to compel further responses. (Khorsandi Decl., Ex.6 pdf 105). After the 2/20/26 telephonic meet and confer, with regard to Demands 148, 149, 150 and 151, Defendant did not indicate that it would be serving any further responses or extending the

deadline for Plaintiff to file a motion to compel further responses. (Id., pdf 101).

Thereafter, Plaintiff filed the instant motion on 2/27/26

and served same on Defendant on 2/27/26 at 5:12 p.m. (Gonzalez Decl., Ex.1). On 2/27/26 at 6:33 p.m., Defendant served supplemental

responses to Demands 148, 149 and 150, but did not serve a verification until

3/12/26. (Id., Ex.2-3). An unverified response is equivalent to no

response. Appleton (1988) 206

CA3d 632, 635. On 4/14/26, Plaintiff

sent a meet and confer letter regarding Defendant's response to Demand

151. (Id., Ex.4). Defendant did not serve a supplemental

response to Demand 151 until 4/17/26. (Id.,

Ex.5). Defendant served the

corresponding verification on 4/27/26. (Id.,

Ex.6).

Defendant's failure to provide supplemental/further

responses before receiving Plaintiff's motion on the agreed upon deadline for a

motion to compel further responses caused Plaintiff to unnecessarily incur

attorney's fees and costs related to this motion.

As such, the Court finds that sanctions against Defendant

and its counsel, Sanaz Cherazie and Amaro Baldwin, LLP, jointly and severally,

are warranted. CCP 2031.310(h). Further, the Court finds that the \$2,600.00

in sanctions requested is reasonable. (See

Khorsandi Decl. ¶¶16-17).

CONCLUSION

The request to compel further responses is moot. Plaintiff's request for sanctions is

granted. Defendant and its counsel, Sanaz

Cherazie and Amaro Baldwin, LLP, jointly and severally, are ordered to pay \$2,600.00

in sanctions within 30 days.

Defendant's request for sanctions is denied.

Dept. F47

Date: 8/7/26

TRIAL DATE: 11/2/26

Case #24CHCV02702

MOTION TO
COMPEL FURTHER RESPONSES

(Form
Interrogatories, Set 1)

Motion filed on 3/13/26.

MOVING PARTY: Plaintiff Serene Fakhouri

RESPONDING PARTY: Defendant Magic Mountain, LLC

NOTICE: ok

RELIEF REQUESTED: An order
compelling Defendant Magic Mountain, LLC to, within 10 days, serve a further
verified response to Form Interrogatories, Set 1, Nos. 12.2, 12.3, 12.4, 15.1
and 16.10. Additionally, Plaintiff
requests an order imposing sanctions against Defendant and its counsel, Sanaz
Cherazie and Amaro Baldwin, LLP, jointly and severally, in the amount of \$2,600.00.

RULING: The motion is granted as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of injuries allegedly sustained by
Plaintiffs Serene Fakhouri (Serene); Cassandra Fakhouri (Cassandra's claims
were dismissed with prejudiced on
11/19/25) and Reyan Fakhouri (Reyan) (collectively, Plaintiffs) as a result of
riding the Riddler's Revenge roller coaster at Defendants Magic Mountain, LLC
and Six Flags Entertainment Corporation's theme park. Reyan is the mother of Serene and
Cassandra. (Second Amended Complaint (SAC)
¶4).

On 7/24/23, Plaintiffs visited Defendants' amusement park
and rode the Riddler's Revenge roller coaster.
(SAC ¶22). Plaintiffs allege that

while on the ride, their heads and bodies were jerked around like rag dolls to the point where they all sustained traumatic brain injuries. (See SAC ¶¶25-27). Additionally, Plaintiffs allege that when they got off the ride, they exhibited post-concussion symptoms. Id. Serene also exhibited left facial droop and slurred speech. Id.

Plaintiffs have sued Defendant Magic Mountain LLC (Defendant) and others for: (1) General Negligence, (2) Premises Liability, (3) Negligent Infliction of Emotional Distress, (4) Strict Products Liability – Manufacturing Defect, (5) Strict Products Liability – Design Defect, and (6) Strict Products Liability – Failure to Warn.

On 8/25/25, Serene/Plaintiff served Defendant with Form Interrogatories, Set 1. (Gonzalez Decl. Decl., Ex.1). After several extensions, on 11/3/25, Defendant served responses. (Id., Ex.2, 4). On 12/30/25, the parties then began to meet and confer regarding responses which Plaintiff found deficient during which the parties agreed to extend the deadline to file a motion to compel further responses until 3/13/26. (Id., Ex.3-4). Ultimately, Defendant did not supplement its responses to Form Interrogatories Nos. 12.2, 12.3, 12.4, 15.1 and 16.10. (Id., Ex.4).

Therefore, on 3/13/26, Plaintiff filed and served the instant motion seeking an order compelling Defendant to, within 10 days, serve a further verified response to Form Interrogatories, Set 1, Nos. 12.2, 12.3, 12.4, 15.1 and 16.10. Additionally, Plaintiff requests an order imposing sanctions against Defendant and its counsel, Sanaz Cherazie and Amaro Baldwin, LLP, jointly and severally, in the amount of \$2,600.00. Defendant has opposed the motion and Plaintiff has filed a reply to the opposition.

ANALYSIS

The scope of discovery is broad allowing a party to obtain information regarding any matter that is not privileged which is relevant to the subject matter of the pending action or the determination of a motion, if the matter is itself admissible or appears reasonably calculated to lead to the discovery of admissible evidence.

See CCP 2017.010.

A party must respond separately under oath to each

interrogatory by providing an answer containing the information requested; an exercise of the party's option to produce writings or an objection to the interrogatory. CCP 2030.210(a).

CCP 2030.220 provides that: "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."

On receipt of a response to interrogatories, if the propounding party deems an answer to an interrogatory is evasive or incomplete; an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate or an objection is without merit or too general, the propounding party may move to compel a further response. CCP 2030.300(a).

Here, Defendant has improperly interposed meritless objections to each of the Form Interrogatories at issue and has otherwise failed to provide adequate responses. Form Interrogatories 12.2, 12.3, 12.4 and 16.10 seek information as to whether Defendant has interviewed individuals; whether Defendant has obtained written or recorded statements from any individual concerning the incident; whether Defendant knows of any photos, films or videos depicting any place, object or individual concerning the incident or Plaintiff's injuries; and whether Defendant has any document concerning present physical, mental, or emotional condition of any plaintiff in this case from a health care provider not previously identified, except for expert witnesses. If Defendant responds in the affirmative, each of the interrogatories requests follow-up information. Defendant responded to each of these form interrogatories, which have been approved by the Judicial Council, with objections based on attorney-client and/or attorney work-product privileges. Such objections are without merit as the interrogatories are merely requesting general information not any confidential communications between the attorney and client and/or the attorney's work-product.

The substantive responses provided in response to these Interrogatories after these objections are also insufficient.

It cannot be determined whether any information is being withheld based on the meritless objections.

Additionally, Defendant has failed to provide all of the information requested by the subparts of the interrogatories. Further, with regard to Form Interrogatory 12.4, Defendant has improperly limited the response to the incident.

Form Interrogatory 15.1 asks Defendant to identify each denial of a material allegation and each special affirmative defense in its pleading and to provide supporting information for each. Defendants objections on the grounds that the interrogatory is premature and seeks information protected by the attorney-client privilege and/or attorney work product doctrine are without merit. If Defendant does not have any facts, witnesses, or documents to support its denials and/or defenses more than 2 years after this case was filed, it must state so in a verified discovery response.

The Court finds that sanctions against Defendant and its counsel, Sanaz Cherazie and Amaro Baldwin, LLP, jointly and severally, are warranted. CCP 2031.310(h). Further, the Court finds that the \$2,600.00 in sanctions requested is reasonable considering Plaintiff's counsel has already reduced the amount from the actual time expended in relation to the interrogatories at issue and issues with interrogatories which were resolved before the filing of the motion. (See Gonzalez Decl. ¶¶16-17).

CONCLUSION

The motion is granted.

Defendant is ordered to provide further responses, without objections, to Form Interrogatories, Set 1, Nos. 12.2, 12.3, 12.4, 15.1 and 16.10 within 20 days. Sanctions are imposed against Defendant and its counsel, Sanaz Cherazie and Amaro Baldwin, LLP, jointly and severally, in the amount of \$2,600.00, payable within 20 days.

Defendant's request for sanctions is denied.